

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/15/26 TIME: 1:30 P.M. DEPT: H CASE NO: CIV2203747

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: STEPHEN ROULAC vs. DEFENDANT: PROMORTGAGE, INC., ET AL	
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NATURE OF PROCEEDINGS: MOTION – SANCTIONS – DISCOVERY FACILITATOR PROGRAM

RULING

Promortgage Inc. (“Promortgage”) filed a motion for evidentiary and monetary sanctions against Stephen Roulac (“Roulac”) related to Roulac’s failure to comply with this Court’s prior order granting Promortgage’s motion to compel responses to Form Interrogatories, Set Two and Special Interrogatories, Set Three.

Roulac filed a late opposition which essentially conceded that responses have not been served. Roulac agrees to serve responses before the hearing and has agreed to pay monetary sanctions. Roulac asserts there has been no prejudice to Promortgage, but this Court disagrees. Responses have been outstanding for several months, which has stymied the parties ability to consider depositions or resolution.

The Court agrees that monetary sanctions are warranted and orders sanctions against Promortgage and its counsel in the amount of \$765 to be paid within 20 days of this order. The parties shall appear for the hearing and confirm that such responses have been served. In the event they are still outstanding, the court will issue evidentiary sanctions.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for July, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNgEGafG.1>

Meeting ID: 161 548 7764
Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 07/15/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0002364

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF: STEPHAN WEIBEL, ET AL vs. DEFENDANT: OSHIORENOYA AGABI, ET AL	
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NATURE OF PROCEEDINGS: MOTION – COMPEL – DISCOVERY FACILITATOR PROGRAM

RULING

Plaintiff Stephen Wiebel has filed a motion to compel third parties Arthur and Anna Manseau to comply with this Court's December 31, 2025 order to turn over \$21,480 in funds received from the sale of abandoned personal property. The Manseaus assert that they should not have to turn over these funds because they needed to pay \$20,000 to clean the premises left behind by Defendant Oshiorenoya Agabi.

Section 1990.03 of the Civil Code requires that after a tenancy has terminated, a landlord must give written notice to the tenant of the sale of any abandoned property left behind and to any other person the landlord reasonably believes to be the owner of the property.

Wiebel's counsel set forth a declaration asserting that he was in contact with the real estate brokers regarding the abandoned property and that they discussed the lien on the property. However, the property was sold without notice to Wiebel's counsel. The Manseaus do not dispute that they were aware that Wiebel had an interest in the property.

Accordingly, the Manseaus are required to comply with the turnover order issued by this Court on December 31, 2025.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.